

MAIL *AM*

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
THEODORE STRICKLAND,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, its' agents, servants and/or employees,
and POLICE OFFICER CHRISTOPHER VACCARO,
(Shield No. 3957), Individually,

Defendants.
-----X

Index No.:

Date Filed:

Plaintiff Designates

BRONX COUNTY As

The Place of Trial

The basis of venue is place
of incident

SUMMONS

Plaintiff resides at
3 West 137th Street
New York, New York

To The Above Named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action to serve a copy
of your answer, if the complaint is not served with this summons, to serve a notice of
appearance to the Plaintiff's Attorney within 20 days after the service of this summons
exclusive of the day of service (or within 30 days after the service is complete if this summons
is not personally delivered to you within the State of New York); and in case of your failure to
appear to answer, judgment will be taken against you by default for the relief demanded in the
complaint.

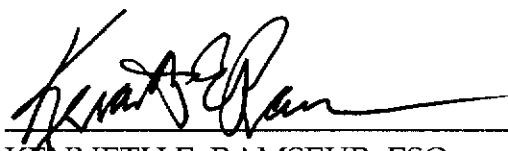
Dated: New York, New York
March 27, 2014

RECEIVED
BRONX COUNTY CLERK'S OFFICE

MAR 28 2014

PAID
☐

NO FEE
☐



KENNETH E. RAMSEUR, ESQ.

Attorney for Plaintiff

Office & P.O. Address

299 Broadway - Suite 704

New York, New York 10007

(212) 964-1070

Defendant(s) Address(es)

CITY OF NEW YORK

Defendant

100 Church Street

New York, New York

NEW YORK CITY POLICE DEPARTMENT

Defendant

One Police Plaza

New York, New York

POLICE OFFICER CHRISTOPHER VACCARO (Shield No. 3957)

c/o 46th Precinct

2120 Ryer Avenue

Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

THEODORE STRICKLAND,

Index No.

Date Purchased:

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, and its agents, servants
and/or employees, and P.O. CHRISTOPHER VACCARO
(Shield No. 3957) Individually,

Defendants.

-----X

Plaintiff, THEODORE STRICKLAND, by his attorney, Kenneth E. Ramseur, Esq.,
complaining of the defendants herein alleges the following upon information and belief:

1. At all times relevant hereto, Defendant CITY OF NEW YORK is a municipality existing under and by virtue of the laws of the State of New York.
2. At all times relevant hereto, defendant CITY OF NEW YORK operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.
3. At all times relevant hereto, defendant, P.O. CHRISTOPHER VACCARO (Shield No. 3957) is employed as a police officer by the Police Department of the City of New York.
4. At all times relevant hereto, defendant P.O. CHRISTOPHER VACCARO (Shield No. 3957) was, upon information and belief, assigned to the 46th Precinct located at 2120 Ryer

Avenue, County of Kings and State of New York.

5. That all of the conditions precedent to the commencement of an action against the defendant CITY OF NEW YORK have been met in that a Notice of Claim was filed with the CITY OF NEW YORK on June 17, 2013 and within 90 days of the accrual of this action; more than thirty (30) days have elapsed since the presentation of the Notice of Claim, and the claim remains unadjusted by the CITY OF NEW YORK. This action has been commenced within one (1) year and ninety days from the accrual of this cause of action, and the CITY OF NEW YORK has conducted a statutory hearing of this plaintiff THEODORE STRICKLAND on September 12, 2013.

**FIRST CAUSE OF ACTION:
(POLICY OF NON-FEASANCE IN THE
PROTECTION OF PLAINTIFF'S CIVIL RIGHTS)**

6. At all times relevant hereto, defendant CITY OF NEW YORK employed the defendant P.O. CHRISTOPHER VACCARO (Shield No. 3957) as a police officer in the New York City Police Department.

7. At all times relevant hereto, defendant CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the Constitutional Rights of the plaintiff under the Fourteenth Amendment to the United States Constitution.

8. In addition, the defendant CITY OF NEW YORK, had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct

and Patrol levels, the defendant officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

9. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Kings and under the authority of their office as police officers of said state, city and county.

10. The defendant CITY OF NEW YORK failed to competently and sufficiently hire, train and retain the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

11. That on or about April 2, 2013 and prior thereto, the CITY OF NEW YORK, in violation of 42 U.S.C. §1983 caused the plaintiff to be injured and damaged in failing to competently hire, train and retain police officers, including but not limited to the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiff herein.

12. On or about April 2, 2013, the plaintiff, THEODORE STRICKLAND, was lawfully and properly present in the vicinity of 184th Street and Tiebout Avenue, County of Bronx and State of New York.

13. On or about April 2, 2013, the defendant, P.O. CHRISTOPHER VACCARO (Shield No. 3957) was present in front of 184th Street and Tiebout Avenue, County of Bronx and State of New York as part of their regular and official employment as police officers for the defendant, THE CITY OF NEW YORK.

14. Commencing on April 2, 2013 at approximately 5:30 p.m. the individual defendant officer, wrongfully and falsely arrested, detained, illegally stripped searched and confined the plaintiff THEODORE STRICKLAND, without probable or just cause, grounds and provocation.

15. Following said arrest, the defendant officers wrongfully detained, arrested and illegally stripped searched the plaintiff THEODORE STRICKLAND at the 46th Precinct, County of Bronx, City and State of New York and imprisoned him.

16. Immediately thereafter, aforementioned defendants, their agents, servants and/or employees falsely arrested and imprisoned the plaintiff and deprived him of rights and liberties as set forth in the Constitutions of the United States and of the State of New York, unreasonably handcuffed him too tightly and physically threatened the plaintiff with use of force.

17. The false arrest and imprisonment of the plaintiff THEODORE STRICKLAND was caused by all of the defendants, their servants, agents and/or employees, without warrant, authority of law, or any reasonable cause or belief that he was, in fact, guilty of any crime.

19. As a result of the aforesaid arrest, plaintiff THEODORE STRICKLAND was forcibly hand-cuffed, detained, transported, illegally stripped searched and treated as a common criminal and incarcerated and imprisoned at various facilities owned, operated, maintained and controlled by the defendant CITY OF NEW YORK and thereby deprived of his rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. §1983.

20. As a further result of the deprivation of plaintiff THEODORE STRICKLAND right to be free from the deprivation of rights guaranteed to him by the Fourteenth Amendment to the United States Constitution, he was caused to suffer injury and damage both mentally and physically, severe nervous shock and emotional distress and illness.

21. On or about April 2, 2013 in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State Law, the defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, detained the plaintiff, even though the defendants knew or should have known that the plaintiff was wholly innocent.

22. That all of the actions of the defendants, their agents, servants and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff; to arrest, illegally stripped searched, restrain and imprison the plaintiff without his consent; that the plaintiff was at all times conscious of his arrest, did not consent to the false arrest and imprisonment were not otherwise privileged.

23. The arrest and imprisonment of the plaintiff were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under

the color of statute, ordinances, regulations, customs and usages of the State, City and County of Bronx and under the authority of their office as police officers for the CITY OF NEW YORK, falsely arrested the plaintiff, although the defendants, acting in such capacity, knew that such charges were false.

24. That the defendants, their agents, servants and/or employees failed to adequately and properly hire, train, retain, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public, including plaintiff; and that the defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

25. That the defendant CITY OF NEW YORK its agents, servants and/or employees failed to hire, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to citizens of the State and City of New York; including plaintiff herein.

26. That the said prosecution and criminal charges and hearings instituted and procured by the defendants, their agents, servants and/or employees were unlawful and malicious without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without

probable cause with actual malice and terminated in favor of the plaintiff.

27. That on or about April 2, 2013 at approximately 5:30 p.m. of that day, while plaintiff was lawfully and properly in the vicinity of 184th Street and Tiebout Avenue, County of Bronx and State of New York and at subsequent times hereinafter, including but not limited to the 46th Precinct, Central Booking and at a detention cell at the Criminal Court Building, County of Bronx, City and State of New York, the defendants, their agents, servants and employees maliciously prosecuted and detained plaintiff THEODORE STRICKLAND without any just right or grounds therefor.

28. That the plaintiff was and is wholly innocent, and was forced by the defendants to submit to court proceedings.

29. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff.

30. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending her usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

31. That the plaintiff, THEODORE STRICKLAND did not commit any illegal act,

either before or at the time he was falsely arrested and imprisoned, assaulted and battered, maliciously prosecuted and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. § 1983, and the Constitution of the State of New York.

32. That at all times hereinafter mentioned, the defendant police officers were employed in their respective capacities by the defendant CITY OF NEW YORK and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the CITY OF NEW YORK.

33. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants, and/or employees, the defendant CITY OF NEW YORK has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

34. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York; The right of plaintiff to be secure under the Fourth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right to plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment of the Constitution of the United States.

35. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

36. That on or about April 2, 2013 in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under the color of State law, the defendants acted individually and in concert causing the plaintiff to have been injured and damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

SECOND CAUSE OF ACTION
(FALSE ARREST AND IMPRISONMENT)

38. Plaintiff, THEODORE STRICKLAND repeats and realleges each and every allegation contained herein, as though the same were set forth at length.

39. On or about April 2, 2013 in the vicinity of 184th Street and Tiebout Avenue, County of Bronx and State of New York, the defendants, their agents, servants and/or

employees wrongfully and falsely arrested, imprisoned and detained plaintiff THEODORE STRICKLAND, without any right or grounds therefor.

40. That the said arrest and imprisonment was caused by the defendants, their agents, servants and/or employees without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that the plaintiff THEODORE STRICKLAND was in fact guilty of such crimes.

41. On or about April 2, 2013 the defendants and each of them acting individually and in concert and while on duty, arrested, detained and imprisoned the plaintiff even though the defendants knew or should have known that the plaintiff THEODORE STRICKLAND was wholly innocent.

42. While plaintiff was so engaged, as aforesaid, the defendants, their agents, servants and/or employees, wrongfully and unlawfully, against the plaintiff's wish, without probable or reasonable cause, arrested and imprisoned the plaintiff with full force of arms, they forcibly and violently seized, illegally striped and searched, assaulted and laid hold of and compelled him to go with the said defendant police officers to be detained and imprisoned at the 46th Precinct, County of Bronx, City and State of New York and continuing to other places and times, including, but not limited to, Central Booking, and in a detention cell located in the Criminal Courts Building, County of Bronx, where the plaintiff was further detained and imprisoned until such time as he was arraigned.

43. That at all times relevant hereto, the defendants owed a duty directly to plaintiff to conform their conduct their conduct to a standard established by law for the protection of

plaintiff.

44. That at all times relevant hereto, the defendants failed to act, protect and safeguard the plaintiff.

45. That at all times relevant hereto, the defendants breached their duty owed directly to the plaintiff which endangered the plaintiff's physical safety.

46. That the defendants, their agents, servants and/or employees acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff even though the defendants, their agents, servants and/or employees had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be searched and placed in confinement at said locations.

47. That the plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees and was forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

48. That as a result of the aforesaid accusations made by the defendants, their agents, servants and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, wickedly and maliciously, the plaintiff was compelled to appear before a Judge of the Criminal Court of the City of New York, County of Bronx, to be arraigned.

49. That the defendants, their agents, servants and employees, as set forth on the aforementioned date, time and place, intended to confine the plaintiff; in that the plaintiff was

conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

50. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, improperly, unjustly and mean-spiritedly conducting a sobriety test, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs and business and he was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment and the loss of employment opportunities.

51. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

52. By reason of his false arrest and imprisonment, the plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this

action.

**THIRD CAUSE OF ACTION
(MALICIOUS PROSECUTION)**

53. Plaintiff THEODORE STRICKLAND repeats and rellages each and every allegation contained herein, as though the same were set forth at length herein.

54. That on or about April 2, 2013 at approximately 5:30 p.m. of that day, while plaintiff was lawfully and properly in the vicinity of 184th Street and Tiebout Avenue, County of Bronx and City and State of New York, and at subsequent times thereafter, including but not limited to the 46th Precinct, Central Booking and at a detention cell at the Criminal Court Building, County of Bronx, City and State of New York, the defendants, their agents, servants and/or employees maliciously prosecuted, illegally stripped searched and detained plaintiff THEODORE STRICKLAND, without any contraband being found, nor any just right or grounds therefor.

55. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff. That on April 3, 2013 the criminal charges brought against the plaintiff THEODORE STRICKLAND were dismissed.

56. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff

was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and vocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

57. As a result of the aforesaid malicious prosecution, the plaintiff, THEODORE STRICKLAND has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

**FOURTH CAUSE OF ACTION
(COMMON LAW NEGLIGENCE)**

58. Plaintiff THEODORE STRICKLAND, repeats and realleges each and every allegation contained herein, as though the same were set forth at length herein.

59. The defendant, CITY OF NEW YORK, was negligent in its operation, management, supervision and control of their Police Department; in not providing adequate training of defendant police officers while at the Police Academy; in their supervision of defendant police officers while assigned to precincts; in failing to provide adequate supervision of defendant police officers during their training at the Police Academy.

**FIFTH CAUSE OF ACTION
VIOLATION OF INDIVIDUAL'S RIGHT TO
BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES UNDER THE CONSTITUTION
OF THE STATE OF NEW YORK**

60. Plaintiff THEODORE STRICKLAND, repeats and realleges each and every

allegation contained herein as though the same were set forth at length herein.

61. On or about April 2, 2013, in the vicinity of 184th Street and Tiebout Avenue, County of Bronx and City and State of New York, in violation of the rights, privileges and immunities guaranteed to him under the Constitution of the State of New York, the plaintiff THEODORE STRICKLAND, was unlawfully searched and seized by the defendant police officers and/or others acting in concert with them, when said defendant police officers and/or others acting in concert with them, and each of them acting individually and in concert, while on duty detained, and searched the plaintiff THEODORE STRICKLAND, even though the defendants knew or should have known that the plaintiff was wholly innocent.

62. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disable, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

63. That by reason of his unlawful search and seizure, the plaintiff THEODORE STRICKLAND, has been damaged in an amount exceeding the jurisdictional limits of this

Court, to be determined upon the trial of this action.

WHEREFORE, plaintiff THEODORE STRICKLAND demands judgment against the defendants having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter and for such other, further and different relief as to this Court may seem just and proper.

Dated: New York, New York
March 27, 2014

Yours, etc.

KENNETH E. RAMSEUR, ESQ.
Attorney for Plaintiff
Office & P.O. Address
299 Broadway - Suite 704
New York, New York 10007
(212) 964-1070

TO: THE CITY OF NEW YORK
Defendant
100 Church Street
New York, New York

NEW YORK CITY POLICE DEPARTMENT
Defendant
One Police Plaza
New York, New York

P.O. CHRISTOPHER VACCARO (Shield No. 3957)
c/o 46th Precinct
2120 Ryer Avenue
Bronx, New York

VERIFICATION

STATE OF NEW YORK)
 : SS.:
COUNTY OF NEW YORK)

THEODORE STRICKLAND being duly sworn, deposes and says:

I am the plaintiff in the within action. I have read the foregoing Complaint and know the contents thereof; that the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief and as to those matters I believe them to be true.


THEODORE STRICKLAND

On the ^{27th} day of March in the year 2014, before me, the undersigned, personally appeared

THEODORE STRICKLAND

personally known to me or proved to me on the basis of satisfactory evidence to be the individual (s) whose name(s) is (are) subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their capacity(ies), and that by his/her/their signature(s) on the instrument, the individual(s), or the person upon behalf of which the individual(s) acted, executed the instrument.


Notary Public

KENNETH E. RAMSEUR
Notary Public, State of New York
Notary No. 13818
Qualified in New York County
Commission Expires April 30, 2014